

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

EMMANUEL LEWIS-JOLLEY,

Plaintiff,

- against -

THE CITY OF NEW YORK, JOSEPH CAMISA,
"JOHN DOES 1-5, THEIR NAMES BEING
FICTITIOUS AND UNKNOWN", HOMES FOR THE
HOMELESS, INC., RAVEN EVERETT, and
ANTHONY SERRANO,

Defendants.

-----X

Index No.

Plaintiff designates
Queens County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
408 Kingsboro 4th Walk (6-A)
Brooklyn, NY 11233

County of Kings

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 9, 2020

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
EMMANUEL LEWIS-JOLLEY
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007
JOHN CAMISA, c/o 105th Precinct, Queens, New York
SARATOGA, 175-15 Rockaway Blvd., Queens, New York
RAVEN EVERETT, 175-15 Rockaway Blvd., Queens, New York
ANTHONY SERRANO, 175-15 Rockaway Blvd., Queens, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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Index No.

EMMANUEL LEWIS-JOLLEY,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JOSEPH CAMISA,
"JOHN DOES 1-5 THEIR NAMES BEING
FICTITIOUS AND UNKNOWN", HOMES FOR THE
HOMELESS, INC., RAVEN EVERETT, and
ANTHONY SERRANO,

Defendants.

-----X

Plaintiff, **EMMANUEL LEWIS-JOLLEY**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/THE PARTIES

1. That, at all times hereinafter mentioned, and on
September 25, 2019, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was a
resident of the County of Queens, City and State of New York.

2. That, on September 25, 2019, the defendant, **THE
CITY OF NEW YORK**, (hereinafter referred to as "THE CITY") was
and still is a domestic municipal corporation, duly organized
and existing under and by virtue of the laws of the State of New
York.

3. That, at all times hereinafter mentioned, and on September 25, 2019, the defendant, **JOSEPH CAMISA**, (hereinafter referred to as "**CAMISA**"), was and still is a resident of the City and State of New York.

4. That, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on December 4, 2019, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, testified at an oral examination pursuant to the General Municipal Law on July 24, 2020; and, that this action is within one (1) year and ninety (90) days and more particularly being commenced herewith within one (1) year, of the date that the within cause of action having been caused to accrue.

5. That at all times hereinafter mentioned, and on September 25, 2019, the defendant, **HOMES FOR THE HOMELESS, INC.**, (hereinafter referred to as "**HOMES**") was and still is a domestic corporation, duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times hereinafter mentioned, and on September 25, 2019, the defendant, **RAVEN EVERETT**, (hereinafter referred to as "**EVERETT**") was and still is a resident of the

County of Queens, City and State of New York.

7. That at all times hereinafter mentioned, and on September 25, the defendant, **ANTHONY SERRANO**, (hereinafter referred to as "**SERRANO**") was and still is a resident of the County of Queens, City and State of New York.

8. That at all times hereinafter mentioned, and on September 25, 2019, the defendants "**JOHN DOES 1-5**" their names being fictitious and unknown, (hereinafter referred to as "**DOES 1-5**") were and still are residents of the City and State of New York.

9. Police Officers and/or defendants **DOES 1-5** are being sued in their individual and official capacities, and/are agents, servants and/or employees of the defendant **THE CITY** and/or the defendant **HOMES**.

10. Defendant **CAMISA**, is and was at all times relevant herein, a police officer, employee, and agent of the defendant **THE CITY**.

11. Defendant **CAMISA**, was at all times relevant herein, assigned to the 105th precinct, of The Police Department of The City of New York.

12. Defendant **CAMISA**, is being sued in his individual and official capacity.

13. Defendant **EVERETT**, is and was at all times relevant herein, an agent, employee, and/or servant of the

defendant **HOMES**.

14. Defendant **EVERETT**, was at all times relevant herein, working at the "Saratoga Family Inn", 175-15 Rockaway Blvd., in the County of Queens, City and State of New York.

15. Defendant **EVERETT**, is being sued in his individual and official capacity.

16. Defendant **SERRANO**, is and was at all times relevant herein, an agent, employee, and/or servant of the defendant **HOMES**.

17. Defendant **SERRANO**, was at all times relevant herein, working at the "Saratoga Family Inn", 175-15 Rockaway Blvd., in the County of Queens, City and State of New York.

18. Defendant **SERRANO**, is being sued in his individual and official capacity.

19. That on September 25, 2019, the plaintiff, **EMMANUEL LEWIS-JOLLEY** was residing with his girlfriend and son on premises known as 175 - 15 Rockaway Blvd. in the County of Queens, City and State of New York, in the "Saratoga Family Inn" located thereat.

20. That the plaintiff, **EMMANUEL LEWIS-JOLLEY** had moved into the aforementioned location in March or April of 2018, and at all times hereinafter mentioned, and on September 25, 2019 was a resident therein.

21. That on September 25, 2019 the plaintiff, **EMMANUEL LEWIS-JOLLEY** heard a knock on his door where he was residing.

22. He later learned that police and security, who are agents, servants, and/or employees of the defendant **THE CITY** and/or the defendant **HOMES** were present therein.

23. A security guard and / or employee of the defendant and or defendants was at the door and approached the plaintiff, **EMMANUEL LEWIS-JOLLEY**, and asked that the door be opened.

24. The plaintiff, **EMMANUEL LEWIS-JOLLEY** inquired as to why he had to open up the door.

25. The plaintiff **EMMANUEL LEWIS-JOLLEY** learned that there was an argument taking place, of which the plaintiff, **EMMANUEL LEWIS-JOLLEY** responded and advised that he was not part of any such argument, yet opened the door anyway.

26. That the security guards and/or agents, servants, and/or employees of the defendants, entered the plaintiff's dwelling unit and began looking around, at which point the plaintiff's girlfriend, was using the bathroom thereat.

27. The plaintiff, **EMMANUEL LEWIS-JOLLEY** was ordered to leave the premises immediately by the defendant and/or defendants herein.

28. The plaintiff's girlfriend told the defendant and/or defendants, that the plaintiff himself was a resident, and not a trespasser, and did not have to leave, and was otherwise allowed to remain thereat.

29. That the defendant police officers, and/or the other agents, servants, and/or employees of the defendant **THE CITY**, had pointed a taser weapon at the plaintiff's girlfriend and they approached his young child in a threatening manner.

30. That the aforementioned defendant police officers, and/or their agents, servants, and/or employees of the defendant **THE CITY** had shot, without justification, a taser weapon at the plaintiff, **EMMANUEL LEWIS-JOLLEY** himself, causing him to sustain serious and severe personal injuries.

31. That The plaintiff, **EMMANUEL LEWIS-JOLLEY** had lost consciousness and after regaining consciousness, was tasered again, by the aforementioned police officers and/or other agents, servants, and/or employees of the defendant, **THE CITY** herein.

32. That the additional Taser attack struck the plaintiff **EMMANUEL LEWIS-JOLLEY** in the middle of the chest, the right side of the hip, and / or other areas which had caused him to sustain additional personal injuries and pain and suffering.

33. That the plaintiff **EMMANUEL LEWIS-JOLLEY** was placed in handcuffs and was verbally abused by the aforementioned agents, servants, and/or employees of the defendant and / or the defendants herein.

34. That the plaintiff, **EMMANUEL LEWIS-JOLLEY** was taken to Queens Hospital, where he remained under arrest, and medical treatment was then provided to him.

35. That the plaintiff, **EMMANUEL LEWIS-JOLLEY** was not advised why he was being arrested, nor read his "Miranda rights", or other rights afforded to him by the United States Constitution.

36. That the plaintiff, **EMMANUEL LEWIS-JOLLEY** was taken by the defendant police officers and / or other agents, servants, and the employees of **THE CITY**, to a police precinct whereby he was fingerprinted, processed and "strip searched", without probable cause, without reasonable cause and without justification.

37. Thereafter the plaintiff, **EMMANUEL LEWIS-JOLLEY** was taken to central booking where he was held against his will by the defendant **THE CITY**, their agents , servants, and the employees, for an unreasonable and unjustifiable amount of time.

38. That the plaintiff, **EMMANUEL LEWIS-JOLLEY** appeared before a Judge wherein he was released on his own recognizance.

39. That the charges against the plaintiff, **EMMANUEL LEWIS-JOLLEY** which included, but were not limited to, obstructing governmental administration, trespass, and harassment, were unjustifiable, the result of malice, and/or were brought against him without probable cause, without reasonable cause and without justification.

40. That the plaintiff, **EMMANUEL LEWIS-JOLLEY** was caused to appear in court for numerous occasions, and all charges against him, were adjourned in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

41. That, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 40 with the same force and effect as if hereinafter more fully set forth at length herein.

42. That, on September 25, 2019, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

43. That, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was assaulted/battered without justification and without cause and without excuse.

44. That, the assault/battery took place within premises known as the "Saratoga Family Inn" located at 175-15 Rockaway Boulevard, in the County of Queens, City and State of New York and other locations wherein the plaintiff, **EMMANUEL LEWIS-JOLLEY** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

45. That, at all times hereinafter mentioned and on September 25, 2019, and for sometime prior thereto, defendant, **CAMISA**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed

by the defendant, **THE CITY**.

46. That, at all times hereinafter mentioned and on September 25, 2019, and for sometime prior thereto, defendant, **EVERETT**, was an agent servant and/or employee of the defendant **HOMES**, working within the scope and course of his employment with the defendant, **HOMES**.

47. That, at all times hereinafter mentioned and on September 25, 2019, and for sometime prior thereto, defendant, **SERRANO**, was a agent servant and/or employee of the City, working in the scope and course of his employment with the defendant, **HOMES**.

48. That, the aforementioned assault and battery of the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**, and/or the defendant **HOMES**.

49. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

50. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

51. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Retention,
Training, and Supervision)

52. That, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 51 with the same force and effect as if hereinafter more fully set forth at length herein.

53. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

54. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

55. That, all of the aforementioned acts, committed by agents, servants, and/or other employees of the defendant, **HOMES**, were committed due to the negligence, recklessness and carelessness of the aforementioned agents, servants and/or other employees of the defendant, **HOMES**.

56. That the defendant, **HOMES**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various agents, servants and/or other employees, who were employed by the defendant, **HOMES**.

57. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **CAMISA**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

58. That, all of the aforementioned acts, committed by agents, servants and/or other employees of the defendant, **EVERETT**, were committed due to the negligence, recklessness and

carelessness of the aforementioned agents, servants and/or other employees of the defendant, **HOMES**.

59. That, all of the aforementioned acts, committed by agents, servants and/or other employees of the defendant, **SERRANO**, were committed due to the negligence, recklessness and carelessness of the aforementioned agents, servants and/or other employees of the defendant, **HOMES**.

60. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **CAMISA**, who was employed by the defendant, **THE CITY**.

61. That, the defendant, **HOMES**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various agents, servants, and/or other employees, including, but not limited to defendant, **EVERETT**, who was employed by the defendant, **HOMES**.

62. That, the defendant, **HOMES**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various agents, servants, and/or other employees, including, but not limited to defendant, **SERRANO**, who was employed by the defendant, **HOMES**.

63. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

64. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

65. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

66. That the plaintiff, **EMMANUEL LEWIS-JOLLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 65 with the same force and effect as if hereinafter more fully set forth at length herein.

67. That, on September 25, 2019, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was caused to be falsely arrested and

falsely imprisoned without probable cause.

68. That, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was arrested without an arrest warrant.

69. That, the false arrest/false imprisonment took place within premises known as the "Saratoga Family Inn" located at 175-15 Rockaway Boulevard, in the County of Queens, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **EMMANUEL LEWIS-JOLLEY** was held against his will by the defendant, **THE CITY** and/or the defendant **HOMES**, their agents, servants and/or employees.

70. That, the aforementioned false arrest and false imprisonment of the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**, and/or the defendant **HOMES**.

71. That, the aforementioned false arrest and false imprisonment of the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was carried out by defendant, **CAMISA**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

72. That, the aforementioned false arrest and false imprisonment of the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was carried out and/or initiated by defendant, **EVERETT** and/or defendant, **SERRANO**, and/or other servants, agents and/or employees of the defendant, **HOMES**, while working within the scope and course of the

employment with the defendant **HOMES**.

73. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

74. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

75. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
(Violation of Fourth, Fifth
and Fourteenth Amendment Rights)

76. The plaintiff, **EMMANUEL LEWIS-JOLLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 75, with the same force and effect as if hereinafter more fully set forth at length herein.

77. That the plaintiff, **EMMANUEL LEWIS-JOLLEY** did not commit any illegal act, nor did the individually named defendants

have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, had excessive force used against him; and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

78. That at all times hereinafter mentioned, the defendant, **CAMISA** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

79. That at all times hereinafter mentioned, the defendant, **EVERETT** was employed in his respective capacity by the defendant, **HOMES** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **HOMES**.

80. That at all times hereinafter mentioned, the defendant, **SERRANO** was employed in his respective capacity by the defendant, **HOMES** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of

the defendant, **HOMES**.

81. Defendant, **CAMISA**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **CAMISA** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

82. Defendant, **EVERETT**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **EVERETT** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **HOMES** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

83. Defendant, **SERRANO**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although

defendant, **SERRANO** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **HOMES** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

84. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **EMMANUEL LEWIS-JOLLEY** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **EMMANUEL LEWIS-JOLLEY** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **EMMANUEL LEWIS-JOLLEY** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **EMMANUEL LEWIS-JOLLEY** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

85. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

86. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, and/or defendants custom and/or policy of arresting individuals without probable cause.

87. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, and/or defendants custom and/or policy of arresting minorities without probable cause.

88. That the deprivation of plaintiff, **EMMANUEL LEWIS-JOLLEY's** Constitutional Rights was the result of the defendant, and/or defendants custom and/or policy of failing to discipline police officers, and/or other employees for arresting and/or causing the arrest, of individuals without probable cause.

89. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, and/or defendants.

90. That the detaining of plaintiff, **EMMANUEL LEWIS-JOLLEY** without probable cause or justification was the result of customs and/or policies adopted by the defendant, and/or defendants.

91. That the deprivation of plaintiff, **EMMANUEL LEWIS-JOLLEY's** Constitutional rights was the result of the defendant,

and/or defendants arrest of the plaintiff **EMMANUEL LEWIS-JOLLEY** without probable cause.

92. That the deprivation of plaintiff **EMMANUEL LEWIS-JOLLEY's** Constitutional Rights was a result of the defendant, and/or defendants custom and policy in failing to discipline police officers and/or other employees for the use of excessive force.

93. That the deprivation of plaintiff, **EMMANUEL LEWIS-JOLLEY's** Constitutional rights was the result of the defendant, and/or defendants use of excessive force.

94. That the customs and/or policies adopted by the defendant, and/or defendants exhibited a deliberate indifference to the Constitutional rights of plaintiff, **EMMANUEL LEWIS-JOLLEY** .

95. That by reason of the allegations as set forth in all of the aforementioned and following causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, their failure to intervene; the negligent and/or intentional infliction of emotional distress, the plaintiff, **EMMANUEL LEWIS-JOLLEY** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the

defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

96. That, by reason of the foregoing, the plaintiff **EMMANUEL LEWIS-JOLLEY** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

97. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

98. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
(Intentional Infliction of
Emotional Distress)

99. That the plaintiff, **EMMANUEL LEWIS-JOLLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 98 with the same force and effect as if hereinafter more fully set forth at length herein.

100. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **EMMANUEL LEWIS-JOLLEY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights a guaranteed by the laws and Constitution of the State of New York.

101. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

102. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant **THE CITY** and/or the defendant **HOMES**, which are therefore responsible for their conduct.

104. The defendant **THE CITY**, and/or the defendant **HOMES** were the employers of the police officer defendants, and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

106. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

107. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

108. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
(Negligent Infliction of
Emotional Distress)

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **EMMANUEL LEWIS-JOLLEY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights a guaranteed by the laws and Constitution of the State of New York.

111. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

112. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant, **THE CITY** and/or the defendant **HOMES**, which are therefore responsible for their conduct.

114. The defendant **THE CITY**, and/or the defendant **HOMES** were the employers of the police officer defendants and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

116. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

117. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

118. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Failure to Intervene)

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

120. That the defendants that did not physically touch plaintiff, but were present when other police officers, and/or other defendants, violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by police officers, and/or other agents, servants, and/or employees of the defendants.

121. Defendants failed to intervene to prevent the unlawful conduct described herein.

122. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints, and other personal injuries.

123. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York, and/or under the Constitution of the United States of America under 42 U.S.C. §1983.

124. The individual defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY** and/or the defendant **HOMES**, which are therefore responsible for their conduct.

125. The defendant **THE CITY** and/or the defendant **HOMES**, as the employers of the co-defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a result of the aforementioned conduct of the defendants, plaintiff sustained personal physical injuries, including but not limited to emotional and psychological injuries.

127. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

128. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

129. That, by reason of the foregoing, the plaintiff, **EMMANUEL LEWIS-JOLLEY** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **EMMANUEL LEWIS-JOLLEY**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section

1988, of these causes of action.

Dated: New York, New York
September 9, 2020

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
EMMANUEL LEWIS-JOLLEY
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

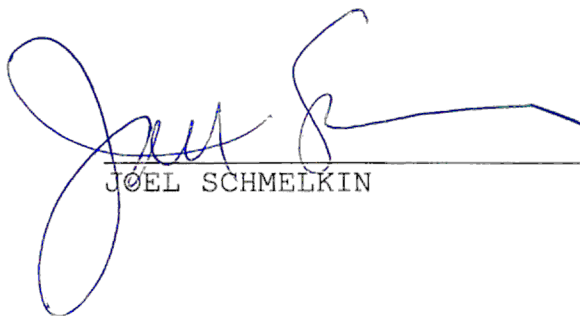
ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York
September 7, 2020



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW QUEENS

EMMANUEL LEWIS-JOLLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOSEPH CAMISA,
"JOHN DOES 1-5, THEIR NAMES BEING
FICTITIOUS AND UNKNOWN", HOMES FOR THE
HOMELESS, INC., RAVEN EVERETT, and
ANTHONY SERRANO.

Defendants

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

EMMANUEL LEWIS-JOLLEY

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated:September 9, 2020

Signature

Print Signer's Name.....JOEL SCHMELKIN.....

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007